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REINING IN BIG TECH

THE NATIONALISED GLOBAL AI RACE AND MARKET FORCES HAVE WEAKENED THE IMPULSE TO REGULATE THE TECHNOLOGY. INDIA'S TECHNO-LEGAL APPROACH TO IT FALLS NOTICEABLY SHORT TOO

By the end of 2025, it became difficult to sustain the belief that meaningful regulation of Artificial Intelligence was imminent. This was not because AI had become safer, or more benign, but because geopolitical anxiety, economic competition and corporate influence consistently outweighed political will.

In the United States, the Trump administration made its position unmistakably clear. Federal regulators stepped back, state-level efforts were curtailed, and a single objective took precedence: maintaining American companies' lead in a global AI race, particularly against China. Big Tech positioned itself as a national champion—amplifying fears of existential AI risk while presenting itself as the only actor capable of managing those risks.

The EU is also dialling back on AI regulation. Starting with the Paris AI Summit, the emphasis shifted decisively toward ensuring EU competitiveness in the global AI race. Concerns about capital flight and lagging innovation have softened earlier commitments to regulate digital markets. The promise of a distinctly European approach to AI governance now appears increasingly fragile.

Hard-won gains by digital rights advocates have also been diluted over the past year. Privacy, for example, has taken a back seat in many key global AI policy forums amid the rush to 'democratise' AI. Calls from civil society to slow down AI development or be more judicious in the use of AI systems are increasingly dismissed as naive. Yet the sense of inevitability around the trajectory of AI innovation masks a basic reality: dominant technology companies have a vested commercial interest in presenting the current trajectory as the only way forward.

The regulation of deepfakes stands out as a partial exception. The recent incident involving the Grok chatbot generating and circulating non-consensual sexualised images of women and children has led to a flurry of punitive action by policymak-



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